

bloodletting and his direct confrontation with the state distanced him from Sufi Mohammad, who had been chastened enough after his Afghan adventure to condemn armed violence. The estrangement between the two men and growing linkages between Fazlullah and al-Qaeda-linked militants such as Baitullah Mehsud in Waziristan tribal agency, led to Fazlullah eventually declaring himself

released from jail in May 2008. Sufi Mohammad who has often spoken of his opposition to electoral democracy and his desire to enforce an Islamic system in Pakistan and has dubbed those opposed to Shariah law as "worthy of being killed", has, in an act of supreme irony, become a 'moderate' to be used to counter the 'extremism' of Fazlullah. The current agreement signed between him (and his still de-

for ordinary people in Peshawar. In fact, the provision for additional judges in the 1999 law, which some thought would open the way for clergy to enter the judicial system, has been done away with. As journalist Ilyas Khan says, "The argument is not as much about the contents of the new regulation as it is about what may follow."

Human rights campaigners have questioned the wisdom of putting the "rigid and unpredictable" Sufi Mohammad centre-stage, since they believe the Government is setting the stage for further concessions to the Islamists. They also believe that such a peace, which will embolden the militants, will not be durable and only allow them to get stronger. "It will not stop here," says Zubair Torwali, a Swat resident. "They will become bold enough to challenge the government's writ of in the rest of Pakistan," he adds.

Even more troubling for the government's planners who have staked their entire strategy on Sufi

AP Photo/SHERIN ZADA



**MASKED TALIBAN MILITANTS
PUBLICLY FLOG AN ALLEGED NARCOTIC
SMUGGLER IN DHERI, NEAR MINGORA**

THE INSTITUTIONALISATION OF EXTREMIST INFLUENCE IS PARTICULARLY WORRYING FOR POST-MUMBAI INDIA.

head of a newly-formed Tehrik-e-Taliban (TeT) in Swat. Although distinct from the similarly named group of Mehsud and the Afghani Taliban movement, many analysts believe there are significant linkages between the three organisations. The army also believes that the brutality of the TeT's recent campaign also is an indicator that many foreign militants, such as Uzbeks, Chechens and Arabs linked to al-Qaeda, have infiltrated its ranks. They also believe that both Pakistani Taliban movements are also receiving some form of covert help through India's intelligence agency RAW in an attempt to destabilise Pakistan.

It is in this context that Sufi Mohammad, now well in his 80s, was

funct TNSM) and the government is predicated on his being able to convince his son-in-law to lay down arms.

The actual agreement, enforcing a "Nizam-e-Adl" (System of Justice), is in fact, not very different from the system already in place in the area since 1999 when prime minister Nawaz Sharif amended the original law enacted by Benazir Bhutto's government in 1994.

Contrary to popular perception, Pakistani criminal law and penal codes, not some new Shariah law, will continue to apply in the region. The only changes have been to stipulate a timeframe for the speedy disposal of cases and to create appellate courts within Malakand Division, as opposed to the current ones which are far away

Mohammad are the doubts being expressed about his influence. When he was released from jail last year, a TeT spokesman had derided him as "a stooge of the Government" and as "irrelevant". Question marks loom large over whether he will actually be able to convince his son-in-law, who is not a direct party to the agreement, to lay down arms. As it is, the agreement is vague enough for either side to wriggle out of it citing non-compliance from the other.

The last time such an agreement collapsed, the fighting entered a more vicious and bloody phase. The people of Swat, as well as concerned observers in rest of Pakistan and abroad, can only watch with bated breath. ■